

STATE OF MINNESOTA

DISTRICT COURT

COUNTY OF HENNEPIN

FOURTH JUDICIAL DISTRICT

Case Type: Contract

Yibiao Lu and Jie Hu,

Court File No.: 27-CV-26-11606

Plaintiffs,

Judge: Jamie L. Anderson

vs.

Fire Insurance Exchange, by and through
Its attorney-in-fact, Fire Underwriters
Association (d/b/a Farmers Insurance),

**DEFENDANT'S PROPOSED
RULE 26.06
DISCOVERY PLAN**

Defendant.

The parties' and Defendant's counsel conferred on August 28, 2026, and were unable to agree on a Joint Discovery Plan. Defendant submits the following proposed discovery plan:

1. What changes should be made in the timing, form, or requirement for disclosures under Rule 26.01, including a statement of when initial disclosures were made or will be made:

No Changes necessary. Initial disclosures shall be made in accordance with Rule 26.01.

2. The subjects on which discovery may be needed, when discovery should be completed, and whether discovery should be conducted in phases or be limited to or focused on particular issues:

Discovery will be needed on Plaintiff's claims and Defendant's defenses to those claims. The parties anticipate completing non-expert and expert discovery by the deadlines set forth in paragraph 6. Discovery should not be conducted in phases or limited to particular issues.

3. Any issues about disclosure or discovery of electronically stored information, including the form or forms in which it should be produced:

The parties agree to retain any documents (including electronically stored information) that may be relevant and discoverable in the case. The parties have not identified any issues about disclosure or discovery of electronically stored information. The parties may meet in the future regarding such issues as the need arises.

4. **Any issues about claims of privilege or of protection as trial-preparation materials, including – if the parties agree on a procedure to assert these claims after production – whether to ask the court to include their agreement in an order:**

The parties agree to follow Minnesota Rule of Civil Procedure 26 with respect to claims of privilege or protection of trial preparation materials.

5. **What changes should be made in the limitations on discovery imposed under these rules or by local rule, and what other limitations should be imposed:**

The parties do not recommend any limitations on discovery beyond those set forth in the Minnesota Rules of Civil Procedure.

6. **Any order that the court should issue under Rule 16.02:**

The parties propose the following pretrial deadlines and respectfully request that they be entered into the Court's Scheduling Order:

Initial Disclosures under Rule 26.01(a)(1): September 25, 2026.

Discovery deadline: February 19, 2027.

Plaintiff's expert disclosures and reports: March 15, 2027.

Defendant's expert disclosures and reports: April 17, 2027.

Rebuttal expert disclosures and reports: May 14, 2027.

Non-dispositive motions heard by: March 1, 2027.

Dispositive motions heard by: April 16, 2027.

Deadline to mediate: June 1, 2027.

Pretrial: August 11, 2027.

Trial: September 1, 2027.

KENNEDY LAW FIRM P.C.

Dated: September 1, 2026

/s/ Mary J. Baskfield
Mary J. Baskfield #314572
7616 Currell Blvd., Suite 270
Woodbury, MN 55125
Telephone: (651) 256-5001
mbaskfield@kennedyllf.com
ATTORNEYS FOR DEFENDANT